

Remarks upon the First Report of the Royal Commission on Ritual in connection with the integrity of the Book of Common Prayer

Mayow Wynell Mayow

An abstract geometric pattern consisting of various shapes like triangles, squares, and circles, some solid and some outlined, in shades of blue and green on a black background.

Project Gutenberg

**Remarks upon the First Report of the Royal
Commission on Ritual in connection with
the integrity of the Book of Common Prayer**

Mayow Wynell Mayow

An abstract geometric pattern consisting of various shapes like triangles, squares, and circles, some solid and some outlined, in shades of blue, green, and yellow, set against a dark background.

Project Gutenberg

The Project Gutenberg eBook of Remarks upon the First Report of the Royal Commission on Ritual in connection with the integrity of the Book of Common Prayer

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Remarks upon the First Report of the Royal Commission on Ritual in connection with the integrity of the Book of Common Prayer

Author: Mayow Wynell Mayow

Release date: June 5, 2015 [eBook #49145]

Language: English

Other information and formats: www.gutenberg.org/ebooks/49145

Credits: Transcribed from the 1868 Church Press Company (Limited) edition by David Price

*** START OF THE PROJECT GUTENBERG EBOOK REMARKS
UPON THE FIRST REPORT OF THE ROYAL COMMISSION ON
RITUAL IN CONNECTION WITH THE INTEGRITY OF THE BOOK
OF COMMON PRAYER ***

Transcribed from the 1868 Church Press Company (Limited) edition by
David Price, email ccx074@pglaf.org

**REMARKS
UPON THE
FIRST REPORT OF THE ROYAL
COMMISSION ON RITUAL,
IN CONNECTION WITH THE INTEGRITY OF
THE
BOOK OF COMMON PRAYER.**

A Lecture

DELIVERED AT THE ANNUAL MEETING OF THE BRIGHTON BRANCH
OF THE ENGLISH CHURCH UNION, NOV. 27, 1867,
(F. BARCHARD, ESQ. IN THE CHAIR,)

BY
THE REV. M. W. MAYOW, M. A.

INCUMBENT OF ST. MARY'S, WEST BROMPTON,
AND LATE STUDENT OF CHRIST CHURCH, OXFORD.

CHURCH PRESS COMPANY (LIMITED),
13, BURLEIGH STREET, STRAND, LONDON,

AND G. WAKELING, ROYAL LIBRARY, BRIGHTON.
1868.

It is right to state that the Brighton Branch of the English Church Union kindly requested leave to publish the following Lecture. It may be well to add that it was likewise delivered at Bradford and Leeds.

REMARKS UPON THE FIRST REPORT OF THE ROYAL COMMISSION ON RITUAL, ETC.

THE Executive of the Brighton Branch of the English Church Union, through you, sir, their Chairman, have, too rashly, I fear, as well as too kindly, supposed that I might have something to say upon the above subject which may repay this assemblage of Churchmen for their trouble in coming here this evening. It is certainly not for me to say you have deluded them, but rather, without wasting time in apology, to do my best to save (if it may be so) your credit and my own; and, what is of more consequence, to throw some light upon the very important matter to which my remarks are to be directed. At any rate, the great importance of the subject itself and the imminent likelihood of some action being taken to disarrange or subvert the present standing of the Church of England by an alteration in her Book of Common Prayer will ensure your deep interest, and, I do not doubt, secure me an indulgent hearing; whilst the very large and influential, and,—I think it will be on all hands allowed,—most successful meeting held last week in London, gives an additional reason for strengthening, if it may be so, the action then taken by diffusing as widely as possible information as to the dangers apprehended, and the means of resistance to be used in order to preserve its integrity.

It is a trite saying just now that there is a great crisis in Church affairs; but I think it must be allowed to be not less true than trite, even after making all allowance for the magnitude with which the time present always invests things present. In secular and material warfare it may be that sometimes an underrating difficulties, a blindness to the peril, is the very cause and means of safety or success. But in assaults like the present, where the battle-field is the Law and Order of the Church, where the contest is carried on not with sword or spear, but with the keen weapons of intellectual and moral

contention, where very much turns and must turn upon the enlistment of public opinion upon this side or that; where prejudice, and ridicule, and sneer, and scoff, appealing constantly to the irreverence and perverseness of the evil side of human nature, backed up in large measure, as might be expected, by a licentious and unbelieving press, adapting itself to a licentious and unbelieving age; where these things are the daily engines of assault, there would seem to be no safety in shutting our eyes to the danger, merely hoping that all “will come some strange way right at last.”

Especially when the assault is made upon doctrine, either directly or indirectly, (for if it be upon ceremonial representing doctrine it is indirectly upon doctrine itself,) when it takes the form of assault upon the integrity of the Prayer Book, and the Catholic *status* of the Church of England in connection with it, we must be wise, and wary, and far-seeing to the utmost of our vision, if we would duly organize our defence and fight *well* the battle for God’s Church and Gods Truth. We must indeed try not to exaggerate anything, but we must also endeavour not to underrate any real danger which exists, and especially not suffer our citadel to be undermined, whilst we are merely regarding a plausible or fair surface.

There seems, too, to be a peculiar and apt propriety in this term crisis, as applied to the present aspect of Church affairs. It is not merely that there is a great *danger*, but a danger coming to a head, which, if happily now overcome, will again subside. Johnson gives as the first sense of crisis, “The point in which the disease kills or changes to the better;” and, as the second, “The point of time at which any affair comes to the height,” according to the exact use of the word by Dryden:—

Now is the very *crisis* of your fate,
And all the colour of your life depends
On this important Now.

And we may well believe that if the present dangers which beset the Church of England be overcome, God may have in store for her a very glorious future indeed, even to her being a great instrument in His hand, not merely for the spreading His Kingdom here at home, but also (may He in mercy grant it) for the restoration of the Unity of Christendom, and thereby for the Evangelization of the world. As our hopes of this must, however, depend upon her being able to maintain her Catholicity, so must we watch with the

most jealous care, and resist with the firmest constancy all which shall impair, her maintenance of Catholic truth and that position which God of His mercy has hitherto permitted her to hold.

One great means of her maintaining this position is the maintaining untouched her Book of Common Prayer, and therefore there is and must be need of the most careful watchfulness as to every threatening of assault upon it.

Now I affirm without hesitation that the first Report of the Royal Commission, appointed, to use its own terms, “to enquire into the Rubrics, Orders, and Directions for regulating the course and conduct of public worship, &c., &c., according to the use of the United Church of England and Ireland,” threatens, and even leads, such an assault. And this gives the connection of the two parts of my subject as announced to you in the title of this Lecture.

As to this threatening or assault contained in the Report, take a witness the most unexceptionable perhaps of any who may be found anywhere, and one whose testimony is only the more convincing as to the danger because he himself does not see it at all, so that it is impossible to suppose him to be straining anything to make a case. Nay, he does not consider what he himself suggests or advocates as a measure carrying out the recommendations of the Report, or as a means to remedy certain embarrassments, to be an alteration in the Prayer Book at all. In his recent Charge, the Bishop of Gloucester and Bristol (himself one of the Commissioners), after considering and dismissing as useless or dangerous, or otherwise inadmissible, several other plans, recommends this:—“A simple and positive enactment declaring what shall be, and be considered to be, the ministerial dress, until further order be taken concerning the same by lawful authority.” And he adds;—“This of course must be by direct legislation. We may shrink from it,” he continues, “but in my judgment it is now inevitable. The very appointment of the Commission seems to involve it, and the general temper of the country will demand it.” ^[6] If the Bishop’s witness is that the mere appointment of the Commission seems to involve a legislative measure touching the Prayer Book, how much more does its Report—leading even such a man as the Bishop on to advocate it—shew that here is *more* than a threatening of assault upon it!

Perhaps we shall have something by and by to add upon the views and recommendations of the Bishop of Gloucester and Bristol's Charge. At present I merely cite this passage as an evidence that the appointment and work of the Royal Commission tend directly to an alteration in the Book of Common Prayer, because such an enactment as is here contemplated would be, I must venture to affirm, whatever his lordship may suppose, a repeal of the Rubric on Ornaments as it stands, and has stood since the last revision. To this, however, I shall have occasion to refer again in the sequel.

But now let us turn for a little while to the Report itself, as issued by the Commissioners on the nineteenth of August, 1867. After reciting the matters for enquiry contained in their appointment, the Commissioners say:—"We, your Majesty's Commissioners, have, in accordance with the terms of your Majesty's Commission, directed our first attention to the question of the vestments worn by the ministers of the said United Church at the time of their ministration, and especially to those the use of which has been lately introduced into certain churches." They proceed:—"We find that whilst these vestments are regarded by some witnesses as symbolical of doctrine, and by others as a distinctive vesture whereby they desire to do honour to the Holy Communion as the highest act of Christian worship, they are *by none regarded as essential, and they give grave offence to many.*"

From this premiss they arrive at the following conclusion:—"We are of opinion that it is expedient to restrain in the public Services of the United Church of England and Ireland *all variations* in respect of vesture from that which has long been the established usage of the said United Church; and we think that this may be best secured by providing *Aggrieved Parishioners* with an easy and effectual process for complaint and redress." They then state that they have not yet arrived at a conclusion how best effect may be given to this recommendation, but they have (they say ^[2]) "deemed it to be their duty in a matter to which great interest is attached not to delay the communication to her Majesty of the results at which they have already arrived."

Now from this, which is the whole substance of the Report, it is evident that the conclusions of the Commissioners are wholly based upon the ground that the vestments are "by none regarded as essential," whilst "they give

grave offence to many.” And of course the stress of the argument, such as it is, rests upon their being admitted to be *non-essential*; because, if they were *essential*, the consideration of their giving grave offence to however many would be no reason at all for restraint in the matter. A thousand things give offence to a world lying in wickedness which are only all the more to be proclaimed and declared on that account. The “offence of the Cross” has not “ceased” now any more than it had in S. Paul’s day. It is well known and widely spread, but this affords no reason for restraining the preaching of the Cross.

But it may be said, admitting all this, yet as these vestments are confessed to be *unessential*, the conclusion is very sound that their use should be restrained; and, in fact, a great deal has been made on all hands amongst the advocates of restraint of this the solitary argument of the Commissioners. There is often a sort of triumphant appeal:—“The Ritualists themselves admit the vestments to be non-essential. What can be the hardship or evil of compelling them to give them up?”

Let us examine this view a little more closely, and see whether there be not a lurking fallacy running through the whole argument.

In the first place, more than one of the witnesses has repudiated the admission of the non-essentiality of these things; and even granting that the term may have been used, it is a further question in what application or connection. Essential is a relative term, depending as to its sense on the context in which it occurs, or the subject matter upon which it bears. It needs, therefore, in each case to be asked, Essential to what? To the *being* or to the *well-being*? There is here a great and important difference. It is quite true that no one maintains that the vestments are essential to the office of the priesthood, or to the validity of any priestly act. But they may be essential to the giving due expression to the act; and to give this due expression may be essential to the salvation of many. Or yet further, the *thing itself* may be unessential as to the validity of acts done, and yet the *liberty* to use it may be of essential importance—aye, even though it may give grave offence to some, perhaps to many.

An illustration may possibly help us to estimate the true value of the Commissioners’ argument, or, as I should rather say, their sophism. And it

seems very important to shew that it is a sophism, because the paragraph in question in their Report is the one thing reiterated over and over again by the advocates of legislation or repression. It is the stock argument, the only argument on which the demand for change is based; and it is often urged as if it were irresistible, and there were no reply to it. Let us, then, examine it, and try to see its true force.

Now there is, as it seems to me, a very apt illustration of its fallacy in a matter of ceremonial treated of in the 30th Canon, and a matter, too, be it observed, where the ceremonial referred to, and defended, was certainly not an essential of Christianity, and as certainly, at the time, gave grave offence to many.

The 30th Canon, by far the longest and most elaborate of the Canons of 1603, treats of “the lawful use of the Cross in Baptism.” The grave offence taken at this usage is declared in the very first words of the Canon—“We are sorry that his Majesty’s most princely care and pains taken in the Conference at Hampton Court, amongst many other points touching this one of the Cross in Baptism, hath taken no better effect with many, but that the use of it in Baptism is so gravely stuck at and impugned.” And then the Canon, instead of upon this account recommending that the use be restrained, or that persons aggrieved (“Aggrieved Parishioners”) should have provided for them “an easy and effectual process for complaint and redress” instead of this, the Canon goes on to give various godly reasons why the usage should be retained, even though it gave this grave offence—aye, and though the cause of the offence was its being supposed to have a savour of Rome, and though it was a matter in itself indifferent. Without reciting the whole Canon we may remark that the reasons stated are exactly such as, *mutatis mutandis*, might be applied to the very ceremonial brought under censure by the Commissioners; such as, that whilst some derided it, others valued it and were edified by it; that it brought into sight and kept in men’s minds certain great truths of the Gospel; that it had the weight and authority of wide-spread and Catholic use; that not all which was of Roman belief or practice was to be condemned, &c., &c. So the Canon says “it is to be observed that although the Jews and Ethnics derided both the Apostles and the rest of the Christians for preaching and believing in Him Who was crucified upon the Cross; yet all, both Apostles and Christians, were so far from being discouraged from their profession by the ignominy of the Cross,

as they rather rejoiced and triumphed in it.” Again, that “the honour and dignity of the name of the Cross begat a reverend estimation even in the Apostles’ times (for aught that is known to the contrary) of the sign of the Cross, which the Christians shortly after used in all their actions.” And although the Synod goes on to “confess that in process of time the sign of the Cross was greatly abused in the Church of Rome,” yet it affirms in the plainest and most unhesitating manner the great principle, that “the abuse of a thing doth not take away the lawful use of it;” and adds, even further, “Nay, so far was it from the purpose of the Church of England to forsake and reject the Churches of Italy, France, Spain, Germany, or any such like Churches, in all things which they held and practised, that, as the Apology of the Church of England confesseth, it doth with reverence retain those ceremonies which doth (do) neither endamage the Church of God nor offend the minds of sober men; and only departed from them in those particular points, wherein they were fallen both from themselves in their ancient integrity, and from the Apostolical Churches which were their first founders; in which respect, amongst some other very ancient ceremonies, the sign of the Cross in Baptism hath been retained in this Church.” Now, all this seems to me not irrelevant to many other ceremonies besides the sign of the Cross, and indeed to have a very close bearing upon the principles on which a high Ritual may be defended. But this is not all. We come next to a point especially and peculiarly to our purpose, for the Canon, going on to say that the sign of the Cross is retained “with such sufficient cautions and exceptions against . . . superstition and error as in the like cases are either fit or convenient,” proceeds to instance some of these cautions and guards; and the very first in the list is this, that the ceremony in question is unessential. The “vestments are by none regarded as essential,” and therefore abolish them, says the Report. The sign of the Cross is unessential, and therefore retain it, says the Canon.

Mark this a little more fully, for what can be more aptly illustrative of the Commissioners’ argument? The Canon does not merely confess and admit, but claims has an advantage and reason for the retention of the usage, that it is not in any way essential to the Sacrament of Baptism. So it says, “First, the Church of England, since the abolishing of Papery, hath ever held and taught, and so doth hold and teach still, that the sign of the Cross used in Baptism is no part of the substance of that Sacrament: for when the

Minister, dipping the infant in water, or laying water upon the face of it, (as the manner also is,) hath pronounced these words, *I baptize thee in the Name of the Father, and of the Son, and of the Holy Ghost*, the infant is fully and perfectly baptized. So as the sign of the Cross, being afterwards used, doth neither add any thing to the virtue and perfection of Baptism, nor being omitted, doth detract any thing from the effect and substance thereof.” Nor is this all. Another paragraph follows, insisting upon the same thing with a second reason, shewing forth still the value of the ceremony, though unessential. “Secondly, it is apparent in the Communion Book, that the infant baptized is, by virtue of Baptism, before it is signed with the sign of the Cross, &c., received into the congregation of Christ’s flock, as a perfect member thereof, and not by any power ascribed unto the power of the Cross. So that, for the very remembrance of the Cross, which is very precious unto all them who rightly believe in Jesus Christ, and in the other respects mentioned, the Church of England hath retained still the sign of it in Baptism; following therein the primitive and Apostolical Churches, and accounting it a lawful outward ceremony and honourable badge, whereby the Infant is dedicated to the Service of Him that died upon the Cross, as by the words used in the Book of Common Prayer it may appear.” This very confession, then, of its being, first, no essential part of the Sacrament; nor, secondly, essential to any one’s being received as a perfect member of Christ’s flock;—is a safeguard and security, it is argued, against any error or superstitious veneration of the sign of the Cross, and so it ought, for its other values to be retained. How near is this to what the Commissioners, upon the evidence before them, might justly have said in relation to the vestments; where in the indifferency of the ceremonial in question they can only find an argument for restraint or abolition. Surely they might not have been far wrong, on the ground both of reason and Scriptural authority, had they, after the pattern of the Canon, asserted the vesture in question to be “a lawful outward ceremony and honourable badge, whereby” more honour is intended and done “unto the Service of Him,” and the blessed Sacrament of *His* Body and Blood, “that died upon the Cross.”

But the Canon has yet another argument bearing upon the duty of using (not abolishing) things indifferent (nonessentials in other words) when ordered by the law of the Church. “Lastly,” it says, “the use of the sign of the Cross

in Baptism being thus purged from all Popish superstition and error, and reduced in the Church of England to the primary institution of it, upon those true rules of doctrine concerning things indifferent, which are consonant to the Word of God and the judgment of all the ancient Fathers, we hold it the part of every private man and other reverently to retain the true use of it prescribed by public authority: considering that things indifferent do in some sort alter their natures, when they are either commanded or forbidden by a lawful magistrate; and may not be omitted at every man's pleasure contrary to the law when they be commanded, nor used, when they are prohibited." Is there nothing here to justify such as simply obey the authority of the Rubric?

There is a passage in the answers of the Bishops to the Nonconformist divines at the Savoy Conference, which aptly illustrates this statement of the Canon, and is of the more moment because it shews that the mind of those who managed that controversy in 1661 was entirely in harmony with that of the framers of the Canons in 1603; and as the Savoy Conference was the immediate precursor of the Convocation of the next year, which in substance ratified and adopted its recommendations in the last revision of our Prayer Book, those Episcopalian divines may well be taken as the exponents of the mind of the very Convocation which passed the Rubric upon ornaments.

We find the following among their replies to the objections of the Nonconformists in relation to things indifferent in themselves. "Whereas the Nonconformists plead that they cannot obey the commands of the Church for fear of violating the precept which forbids adding to the Word of God (Deut. xii. 32): We answer, those Ministers do not well consider that it is no addition to the Word of God to command things for order and decency provided they are enjoined only as regulations of human authority. And supposing some persons continue perplexed and under scruples, the Church may, notwithstanding, without sin, insist upon compliance with decent ceremonies; and all this without being guilty of offending our weak brethren, for here the offence is *taken*, not *given*. It is the prejudice and mistake of the scrupulous person that disturbs himself." A somewhat more exact discrimination as to causes of offence than the Commissioners seem to have "dreamed of in their philosophy!" But the Bishops of 1661 continue, "Neither will the case of St. Paul not eating flesh if it offended his

weak brother give any support to the objection. For here, it must be observed, the Apostle speaks of things not commanded by God, or His Church, of matters which had nothing of decency or significance for religious purposes, and therefore in a case thus unconnected with Divine worship St. Paul was willing to resign his liberty rather than offend his brother.” Surely a remark not without a very close significance in defence of those who are unwilling to forego what they deem so important to the due celebration of Divine Service, even though some are offended at it. “But if any man should venture to break a just law or custom of the Church, the Apostle marks him for a contentious person (1 Cor. xi. 16).” Has this no bearing upon objectors now? And the Bishops continue, “That these ceremonies have occasioned many divisions, as it is pretended, is no more their fault than the misunderstandings between the nearest relations, accidentally consequent upon the preaching of the Gospel (Luke xii.) can be fairly charged upon the Christian religion.” ^[13] Have our present Commissioners duly regarded all this in their hasty conclusion?

To sum up:—these arguments, if not pressed to the full as to sin or fault in those who may not use or carry out a prescribed ceremonial in all circumstances, such as, for instance, long desuetude, may, at the very least, one would think, be of sufficient weight defensively for such as have merely obeyed the Law to prevent hard words being used either by Royal Commissioners, or any others in high places, towards those, I say, whose offence is merely that they have thus obeyed it. And the fact of a ceremony, significant, though giving offence, being thus prescribed by the Canon, and others of like kind, contended for by the Savoy Episcopalian Divines, though confessed to be *things indifferent*, gives a special application of the whole to the one argument of the Commissioners concerning the vestments being “regarded by none as essential.” For let it be well observed that the argument of the Canon is; This ceremony, the sign of the Cross, though derided by Ethnics and Jews, is rejoiced in by the Apostles; it begets a reverend estimation in regard to a Sacrament: even the abuse of a thing doth not take away the lawful use (no, not when the abuse has been by Rome). The usage is indifferent, non-essential, in itself, and the conclusion is, it is all the more to be retained. Moreover, being ordered by lawful authority, it ought not to be made light of, or objected to. In which principles the divines of the Savoy Conference and the last revisers of our Prayer Book

agree. Surely, then, these authorities in all this are as widely divergent from the views and reasoning of the Royal Commissioners as east is from west, or black from white. And the whole comparison teaches us much as to the value of their one argument, which I have ventured to call a sophism, as to the vestments being “by none regarded as essential.” Moreover, if Bishop Sanderson’s remark is sound, that “to take away the indifferency of things indifferent is superstition,” it will not be hard to decide between those who reverently use, and those who bitterly denounce, the vestments, which are the *superstitious* persons in the present controversy.

But let us proceed to another point. I said, that even when a thing or usage may be in itself not essential, yet the liberty to use it may be highly essential, and this, in spite of its giving grave offence to many. Take a brief illustration of this. We all know there was a time when the marriage of the clergy gave grave offence to many. Suppose at such period a Royal Commission had been appointed to inquire into the importance of the celibacy of the clergy. Say the Commissioners had reported, “We have examined many witnesses, married and unmarried. We find considerable difference of opinion. But we find that by none, even among the married clergy, is the marriage of priests regarded as essential to any priestly act, whilst their marriage gives grave offence to many. We are therefore of opinion that it is expedient to enforce a greater uniformity of practice by restraining the marriage of priests, and admitting no deviation from what has been a long-established usage in the Church, &c. &c.” Now no one among us will deny the fact of marriage being unessential to the functions of the priesthood, and yet the liberty to marry may be very essential indeed to the welfare of the Church. This liberty, for “Bishops, Priests, and Deacons, as for all other Christian men, to marry at their own discretion, as they shall judge the same to serve better to godliness,” was at any rate thought essential enough to be made the subject of one of our Articles. And surely this may shew something as to the weight to be attached to the one argument of the Commissioners, for the “opinion” which they put out, and the conclusion at which, on this sole basis, they arrive.

There is one point, further, which I should like briefly to touch upon before leaving this matter of essential or non-essential, for it shews how very carelessly or unscrupulously the Commissioners have done their work, and made their Report. The citation, which in its commencement they give

from the Commission appointing them, contains these words: that “it is expedient that a full and impartial enquiry should be made into the matters aforesaid,” viz. ornaments, vestments, and such like, “with the view of explaining or amending the said rubrics, orders, and directions, so as to secure general uniformity of practice *in such matters as are essential*.” ^[15] Now, observe, by their own shewing, by the evidence they adduce, by the one argument they advance, they recommend changes to secure a greater uniformity in things which are *not essential*! Their own very statement about these things, their sole ground on which they form their opinion and base their recommendation, is, that in regard to those witnesses whom they have examined, they (the ornaments or vestments) are by none *regarded as essential*. They accept and endorse this; and then, in spite of the terms of their commission to enquire how to secure a general uniformity of practice *in such things as are essential*, the only recommendation which they make is upon that which they proclaim to be *unessential*, and what is more, upon the very ground of its being *unessential*! ^[16]

But now, having considered the Commissioners’ one reason, and their “opinion,” and their consequent recommendation, we must come a little more particularly to examine their proposed mode of operation. It is true they here become vague and uncertain. They think “it is expedient to restrain in the public services of the Church all variations in respect of vesture from that which has long been the established usage, &c.” and, “that this may be best secured by providing aggrieved parishioners with an easy and effectual process for complaint and redress.”—(Report, p. vii.) But as to the details of this provision, as to “the best *mode* of giving effect to these conclusions,” they are not yet prepared with their scheme.

Perhaps this is all very natural, and it may be very fortunate. We may be thankful that we have not a scheme devised, to carry out their proposal, as crude as the proposal and the Report itself. But though these details are not before us, and we have a little respite before they come, we are not without some indication as to what they are likely to be; and we shall do well to use the time we have before they actually take definite shape, in providing as far as possible to thwart any pernicious principles which may be embodied in them.

Now I affirm, and I think I shall be able to shew, that the remedy to be provided for the “aggrieved parishioner,” by which he is to be enabled by law to make complaint of, and obtain redress as to variations in respect of vesture, (where being legal they yet displease him,) can *only* be by an alteration in the Book of Common Prayer. I am not saying, remember, that a due and a great regard is not to be had for the feelings, and even the prejudices, of our people; though it can hardly be denied that it is very desirable these prejudices should be met, and these feelings directed by careful enlightenment, into a more reverent estimation of holy things, than prevailed some years since. If the *usage* of Church ritual which reigned, say, thirty, or forty, or fifty years ago, had been stereotyped at any time as that which should be established for ever in our Church, we should certainly have had a state of things perpetuated which most of us would now regard as an immense spiritual misfortune, and at which we should be wholly ashamed and grieved. But what we have to consider in relation to this Report is not at all this regard, on the part of the clergy, for the feelings of their people, but the putting into their hands a positive and express legal process of remedy and restraint, where any change from long-established custom, however accordant with the law, is proposed to be adopted. And I say unhesitatingly, that such redress, redress of such a nature, for the so-called “aggrieved parishioner,” can only be by a repeal of the Rubric. This surely is plain on the very face of the matter. For the Prayer Book gives the law (Church Law and State Law in one) as to what vesture or ornament shall be used; and what power on earth can give the aggrieved parishioner a right or power to interfere with this law, as much statute law as any other thing in the statute book, but the repeal of the law? There is no other conceivable mode. What can restrain a priest from complying with the law of his Church and the law of the land? what can make it penal to obey it, but the repeal of the said law? This may be done directly or indirectly. It may be done explicitly or implicitly; but done it must be if any one or any number of aggrieved parishioners are to be empowered to restrain their parish priest from, not, observe, the mere impulse of his own fancy, but from an obedience to that which is the law of his Church, and the statute law of the land, as laid down in the Prayer Book.

This seems evident enough in the very nature of things. And therefore if we value the Prayer Book as it is, and the *status* of the Church of England as in

such large measure depending upon it, we have every right, and more than the right, the duty, to be up and stirring to defend it, under the assault upon its integrity which this, the present Report, threatens. Indeed, under such intimations as we have, where “coming events cast their shadows before,” it seems to me that it would be absolute infatuation to wait until the attack is more matured, and the danger nearer, before organizing every mode and means of defence and resistance to that which is already so obviously impending.

But we are not even left to our own mere reasoning, or natural anticipations, to guide us to the mode in which the Commissioners must be prepared to carry out their opinion and recommendation. We have a light thrown upon this, in a lucid commentary upon the bare Report, furnished us by one of the Commissioners. I have already alluded to it. The recent Charge of the Bishop of Gloucester and Bristol not only deals with the question of Ritual itself, but specifically, in relation to it, with the modes in which the recommendation of the Report may be carried out; and I will venture to affirm, even in the face of his Lordship’s disclaimer as to the mode which he himself advocates being an alteration in the Prayer Book, that there is not one of the courses suggested (except the course of leaving the matter to the decision of the Courts, which he at once rejects,) that does not involve a repeal, direct or indirect, of the rubric upon ornaments. It will not be alien from, but indeed very much to, our purpose to take his statements in some detail, and see what they indicate as to the likely progress of the Commissioners’ work. Bishop Ellicott’s Charge in this relation is very important, for it cannot but give us the key to what he at least will press upon his brother Commissioners when again they meet, and perhaps is now pressing upon them.

Let us turn to the Charge, and mark both its general tone and specific recommendations as to high Ritual. Having adverted to the “deteriorating developement of the Ritual movement,” he says: ^[19]—“Reluctant as I am to enter upon a subject of such difficulty and controversy, yet I feel it my clear duty to place succinctly before you the present state of the question, to endeavour dispassionately to estimate the real amount and extent of the *evil*” (Bishop Ellicott has no doubts as to this term); “and, lastly, to consider the remedies that have been proposed, and the general counsel that may seem at this serious crisis most calculated to bring back peace to our now

disquieted Church.” Then, after an historical sketch, with remarks, shewing his lordship’s feelings upon the subject, and a brief—almost, as it seems to me, a needless—apology for the bishops for not having put down with a quick and strong hand certain presumably *legal* ornaments or usages, he proceeds to consider what may be done in the way of remedy for the *evil*, as he deems it, of Ritual representing doctrine, in the following terms:—

“Let us now,” he says, “leave the past, and with the past all antagonisms and recriminations, and rather as calm, earnest, and loyal sons of the Reformed Church of England, confer together as to what now remains to be done. Let us soberly and dispassionately consider what measures seem wisest, what remedies most hopeful, at the present momentous crisis. Let us clear the ground by considering briefly some courses and remedies that have already been proposed, and that probably will be reiterated with pertinacity. One proposed remedy is, the simple omission of the Ornaments’ Rubric as in the Irish Book of Common Prayer; or its definite and express repeal by some legislative measure. This is a prompt remedy, but a dangerous one—dangerous in part from reasons already adduced, in part from the deep and rankling bitterness arising from the thus greatly increased conviction that the law is really in favour of the use of vestments, and being so is to be overridden by an unjust Act of Parliament. Two courses are always dangerous in this country; one is to leave in the hearts of any party an enduring sense of injustice, a ready political illustration of which is perhaps at once rising in the thoughts of many of us; the other is, to come in direct conflict with that constitutional principle which is embodied in the familiar and traditional ‘*Nolumus leges Angliæ mutari.*’ We cannot, then, I think, wisely adopt the remedy just mentioned.”

I imagine few of us will be disposed to question the justice of these remarks, or to quarrel with the dismissal of this first proposed mode of remedy. But next he mentions another course, in these terms:—“Still less wise should we be to adopt another but very dissimilar remedy that has been pressed upon us, and will probably be pressed upon us with continued earnestness. This remedy may be considered as summed up in the following formula:—‘Arm your bishops with more power, and then leave it to their Fatherly wisdom to allow or disallow these innovations according to the peculiarities of the case.’ In plainer words, let the bishop become, instead of the administrator of the law, the manipulator of the law; and let a

want of reasonable uniformity, now dangerously great, be multiplied tenfold.”

Observe here, before we proceed further, that this power of manipulation, over and above being open to the objection which the Bishop notices of multiplying diversities of practice, is in fact nothing else than setting the bishop above the law as it exists, and is, therefore, as we said all these remedies would be found to be, a repeal of the rubric which is the present law. But at any rate, here again, the Bishop rejects the proposed mode of action, though, he says, we should “pause” upon it.

“On this remedy it is necessary to pause. Every clear-headed man among us must see, in the first place, that it is giving to bishops a power which they have never even attempted to exercise, except in the unsettled times which immediately followed the Reformation; secondly, that our dioceses would exhibit varieties of usage dependent on the general views and convictions of the bishop for the time being, and liable to be altered when a successor came into his place; thirdly, that men of advanced opinions would make every effort to get into the diocese of that bishop who might be supposed, rightly or wrongly, most to favour them—and, when there, would exercise a combined pressure which would be very difficult to resist; fourthly, and lastly, that, after all, this is but an ingenious expedient to postpone that settlement of the question which common sense and common foresight now perceive to be inevitable.”

Without endorsing the concluding remark of the Bishop’s comment, we may say that with great justice he condemns the remedy, though not expressly upon the ground which I have mentioned as the strongest—viz., its setting the bishop above the law, and so altering the Prayer Book. He adds, however, something more as to a modification of the plan of giving more power to the bishops.

“We may, then, I think, fairly dismiss this proposed remedy as even less hopeful than the first. But there is a sort of phase and form of it, a kind of intermediate course, which deserves more consideration. The proposed measure would be of this kind—to give the bishop not only power to restrain, but to require him to stop, all Ritualistic innovations, more especially in regard of vestments, whenever he might be appealed to by a

certain number of trustworthy parishioners. The effect of this, of course, would be to leave things alone where no complaint was preferred, the justifying grounds being the uncertainty of the law on the one side, and the deliberate preference shown by the parishioners for the mode of conducting public worship then prevailing. No doubt this, in some degree, helps us over the plain difficulty we must expect to meet with in those cases where Ritualistic practices have prevailed for some time unopposed. We must not disguise from ourselves that it will be extremely difficult to bring back to simpler forms of worship a minister and a congregation that have not only been accustomed to, but deliberately prefer, much more ornate forms; the putting off of these vestments will, in some cases, involve much more difficulty and trouble than their original introduction. It is human nature to cling tenaciously to what is distinctive, and this deposition of the distinctive will be complicated by the assumed close connection between the vestment and the doctrine. All these great and real difficulties we have before us, and we may feel at first inclined to favour that which seems to reduce their dimensions, but I do venture to think here again that the dangers likely to arise from thus practically leaving the matter unsettled, and still more from the local discords that would be sure to arise during the constant attempts that would be made to bring the prohibitory bishop in some way or other on the scene, and the sad divisions that would follow if the attempt succeeded—all these things, I fear, must lead us to decide against a remedy, which, while saving us from some immediate difficulties, would bequeath to us and to our children a heritage of future difficulties and dangers far exceeding both in number and degree the difficulties and dangers of the present.”

There is much truth in these objections, but the most potent objection of all is, that here, again, as in all other modes proposed by way of remedy, there is the real and tangible repeal of the Rubric; so an alteration of the Prayer Book, and a manifest change in the *status* of the Church and of Churchmen.

The Bishop next touches upon another plan, which indeed is not a mode of remedy (in the sense of making a change to meet the difficulty) at all, which therefore does not lie open to the same objection. The Bishop, indeed, dismisses it at once as hopeless and useless, though it remains to be seen whether it really be so. I mean the due interpretation of the law by the courts of law; which being done, to let the law alone, and the Prayer Book alone, and the Church alone. However he continues;—“But, lastly, it may

be said, is all hope entirely past of finally settling the question by an appeal to the law courts, and thence to that highest tribunal that has already had the impleaded rubric before it, though under a somewhat different point of view? Yes, I fear we must now say that all hope is finally past. The knot cannot now be laboriously untied; it must be removed by gentle drawing out on either side, or—it must be cut. In the first place, the country at large would not now be content to wait for what experience has shewn might be a long-delayed issue. It would be urged that such delay would only aid the progress of innovation, and that now when a Commission has been appointed and has not recommended a reference to law courts, it would be a practical retracing of steps that would seriously add to our present disquietude. To which we may subjoin this comment—that even if a speedy reference to the ultimate tribunal (by some thought possible) could be secured, the decision now, after the startling evidence given before the Commission, would not, it is to be feared, whichever way it might be, bring to us all the blessing of peace and settlement. If it were *for* the Ritualists, a prompt effort would be made to set aside the rubric by legislation; and then bitterness, struggle, and all the evils above alluded to, in connection with a sense of injustice, would at once be in malignant working among us. If it were *against* the Ritualists, I now sadly fear, after the painful language publicly used by many of them against those in authority, and the disregard of the Convocation Resolutions of last year, that they would decline to submit to the decision, force unwilling men to put the law in action against them, accept the issue, and leave the communion of the Reformed Church.”

There is much here from which I cannot do other than express most strongly my dissent; for—

1. Why should the rabid violence of all that is uncatholic and unbelieving in the country be taken to be the voice of the country to which heed is to be given? The Canon before quoted, when it speaks of offending the minds of men, is careful to say “the minds of sober men;” but here it seems that all which is most violent, unreasoning, and intemperate, is to be accepted as the mind of the country from which there is no appeal. Nay, more, as is evident, this temper is hounded on to be even more violent and rabid, by such unseemly deference to its clamour, and by the pusillanimous assertion that law and order must be overridden because the impatience of such minds will not be content even to wait till the law courts have spoken.

2. Why should we not wait, if it be needful to wait, in order to determine with all due care and deliberation what the law is upon the main points brought into controversy—what it allows and what it disallows? This tremendous impatience, this overwhelming desire for exterminating obnoxious Ritual and Ritualists, this awe-struck terror that if these men, and their practices, and their teaching be only given fair play, their opponents of the uncatholic school will be defeated, and be found to have clamoured for illegal restraints—all this is surely the most wonderful admission against themselves and their cause, which men even pretending to seek truth and right could possibly make, and one least likely to commend their cause and mode of action to any just and honest mind. Hear a few words upon this head from a venerable Archdeacon (*venerabilis* not merely by station and age, but by learning and Christian wisdom also), one of whom England may well be proud. In the *Guardian* of November 6 you will find a letter from Archdeacon Churton, enforcing with very great weight Gamaliel's advice, "Let these men alone," at the present momentous crisis. Allow me to read a few lines from it. He says:—"The advice which alone can save the Church from a new schism is plainly Gamaliel's advice. I am very sorry that so many of our present bishops, younger men than myself, are averse from it, or uttering uncertain sounds which I could never adopt without suspecting my own magnanimity. It is to be regretted that they do not rather seek to guide a movement which has in it too many elements of good to be rudely condemned; and that they do not speak first of vindicating the law before they alter it. On the contrary, however, they seem to contemplate a new statute to establish, as if of perpetual obligation, certain vestments invented by clerical tailors of the last century, at which S. Ambrose would have stood aghast. . . . One of our sacred legislators has declared himself above all things anxious not to allow the Ritualists time to plead their cause with the public. It was the praise of Bishop Henry Spencer in King Richard's time, according to Walsingham, that he gave the Lollards the shortest possible shrift-time for coming to their senses."

There is a passage much to the same purport which will well repay perusal in the late Essay on "The Law of Ritualism," by the Bishop of Vermont, the Presiding Bishop of the United States, from which several extracts are given in one of the Appendices to the Commissioners' Report. Consider the following passage in reference to the unjust impatience of the day, and the

plea for the allowance of fair time to test the merits of the question. His remarks are directed no doubt in the first instance to America, but there is nothing to confine the reasoning to America alone. "Time," says the Bishop, "and nothing but time, can decide the question whether an increase of Ritualism is advisable, or whether the present average of parochial practice is best fitted to carry on the work of the Church in such a country as ours. I doubt whether any man can estimate with sufficient accuracy the various elements which belong to such a subject so as to form anything like a *positive* opinion. Success after all must be the ultimate standard. And that can only be determined *by time, after a fair trial.*" ^[26] The Bishop proceeds to give his opinion, however, upon the matter, which is well worthy of our consideration.

"I am willing, however, to state my *impressions*, and the reader may take them for what they may be worth, according to his own judgment. I incline, then, to regard it as most *probable* that this Ritualism will grow in favour by degrees until it becomes the prevailing system. The old, the fixed, and the fearful will resist it; but the young, the ardent, and the impressible will follow it more and more. The spirit of the age will favour it, because it is an age of excitement and sensation; the lovers of 'glory and of beauty' will favour it, because it appeals with far more effect to the natural tastes and feelings of humanity; the rising generation of the clergy will favour it, because it adds so much to the solemn character of their office, and the interest of their service in the House of God. And the opposition arising from its resemblance to Romanism will die away, as men learn to understand that Popery does not consist in the Ritualism which it pleased the Lord to order for His own chosen people, but in Papal and priestly despotism, in false doctrine, in the worship of the Virgin and the Saints, in Purgatory and Indulgences, in Transubstantiation and pretended miracles, in persecution and intolerance, and in all the other perilous corruptions which are in direct conflict with the unerring Word of God. These, and not matters of mere Ritual, are properly Romanism; and these, and only these, called for the work of Reformation." ^[27a]

I cannot resist the temptation to add a few words more from the Bishop's work, so aptly do they meet many of the popular prejudices and fallacies pervading the unreflecting or intolerant public mind at the present time. After some excellent remarks upon the symbolism of the ministerial

garments, their adoption under Divine command in the old dispensation, and their naturally passing from the Jews to “the Gentiles on the strongest ground of Scriptural consistency,” he adds, “there are many good and respectable Christians in our day who regard this matter of distinctive ministerial garments with contempt, and sometimes even with positive aversion, because they look upon it as one of the corruptions of Romanism. But the ancient Church of God is not to be regarded with contempt by any man who professes to believe the Bible. That sacred institution was Divine, and was given by the Almighty Himself to His own chosen and peculiar people. None but a fool would say that the Church of the Jews had any connection with the system of Popery. Nor will any sensible man pretend that the Reformation of the 16th century was occasioned by the dress or ecclesiastical order of the Church of Rome; which are in no respect more splendid or imposing than the usages of the Oriental Churches.” [\[27b\]](#)

And, further on, after having examined various points of evidence as to the principles and law of the Church of England in the matter, he adds, “to my mind, therefore, the legal position of our English brethren in this matter of Ritualism is justifiable as to its main design, and stands on a far higher ground of Scripture, law, and reason, than that of their adversaries. So long as the great doctrines of the Reformation are faithfully preached by the clergy I can see no danger that a solemn, rich, and attractive ritual will ever lead any one to Popery. Is it not more reasonable to believe that the restoration of the old ceremonial which existed in the second year of Edward VI. would give our Church the advantage which now forms the most alluring characteristic of Rome? . . . Has not truth as good a right as falsehood to be adorned with beauty? And is it to be questioned that religion should favourably affect the senses, in order that it may better reach the soul?” [\[28a\]](#)

3. But, to return more directly to Bishop Ellicott; I must enter my protest against, and state my most absolute disbelief in, the correctness of his opinion as to the last danger indicated in the passage last quoted from his Charge, as to what would be the conduct of the ritualistic clergy under a legal settlement of points in dispute. [\[28b\]](#) It may be, indeed, that if judgment should go in favour of the Ritualists their opponents would be stirred up to any conceivable pitch of madness; but I must wholly disclaim all belief that the great mass of those who have adopted a high ritual would do other than

accept the decision of the law courts, if duly arrived at. Even with our present most unsatisfactory Court of Final Appeal, I should expect this, though it might be under protest; but I do not believe they would refuse to submit to the decision, I mean as to ceremonial, or persist in usages declared to be not warranted by the present law of the Church. It would, of course, be another thing if any attempt were made to tie up their hands, or shut their mouth, as to doctrine; but in regard merely to ceremonial I do not believe they would justify the Bishop's confident prediction, "force unwilling men to put the law in action against them, accept the issue, and leave the communion of the Reformed Church." I do not believe this for a moment as the effect of a legal decision, duly given, or as duly as it can be at present, as to what the law really is; dealing only, I say, in its terms, with ceremonial, even though we should all perceive, it may be, that it had a connection with doctrine. Still this would not be the making a new doctrine, but only declaring that the law of ceremonies was less favourable to the expression by symbolism or otherwise of certain doctrines than it had been supposed to be. This, I think, they would endure. What might be their conduct, if you alter the law on purpose to catch them when they were not offenders under it; if you *change* the Book of Common Prayer in an uncatholic direction, in a matter touching doctrine; if you do this for a party purpose, and to uncatholicize the Church of England, I do not pretend to say. I will venture no prophecy as to what some might be led to do under such an aggravated condition of injustice. I do not myself say, I do not myself think, that they ought, even then, to "accept the issue, and leave the communion of the Reformed Church." But it needs no ghost to tell us that such action taken on the uncatholic side would be a step towards making catholic-minded men *despair* of the Church of England; and if England's Convocations and Legislature should do this, you may well judge, my friends, if they will not have gone near with many to sever the last strand of the rope which held them to her. No man, I will venture to say, leaves her till he despairs of her; and to alter the Prayer Book in a Puritan direction, and for a Puritan purpose, directly at the bidding and for the interest of Puritan innovators, is unquestionably the way to make men despair of her. And awful, indeed, must be the responsibility of any one who has any hand or takes any part in so doing!

But Bishop Ellicott comes next to the scheme of which he himself approves, not indeed as free from all difficulty, but as the best mode which he can think of to relieve the “Aggrieved Parishioner;” and as one which he imagines to be free from the imputation of repealing any part of the Prayer Book. We must give the proposal in his own words. Having, as we have seen, rejected all the former plans mentioned, he says:—“We are thus flung back on the difficult question: Is there any other course or measure that may still be suggested, and that can with any degree of hope be followed, in the present emergency? In attempting to answer the serious question, we must obviously base our answer on the sober and considerate Report of the Royal Commission, and test it by its degree of accordance with the two clearly defined principles of that Report. The two principles are—*First*, that it is expedient to *restrain* all variations in respect of vesture from what has *long* been the established usage, on account of the grave offence so given to many; *Secondly*, that aggrieved *parishioners* ought to be provided with an easy and effectual process of complaint and redress.” Then noticing that the Report makes “an inferential but important recognition of the fact that the innovators are of two classes—the one regarding the vestments as symbolical of *doctrine*, the other as furthering a desire to do *honour* to the highest act of Christian worship” (which after all seems to be a false division, for those who desire to do this honour to the highest act of Christian worship consider it, I apprehend, to be the highest act of Christian worship, and are anxious to pay it this honour *on account* of the doctrine), the Bishop proceeds,—“The two parties do not agree in the view they take of the meaning and design of Eucharistic vestments, but they do agree in the admission that they are not essential to the Sacrament. As, then, that which is admitted to be not essential is certainly an innovation on prevailing custom, and being so certainly does give grave offence, it surely must be pronounced right, fair, and reasonable, calmly and considerately, but still firmly, to restrain the innovation, at any rate until further order be taken by authority, even though the innovation may be able to plead to the letter of a law long ago left in abeyance, and practically abrogated by custom.”

It is not unworthy here of remark how we have again cropping-up the old story of the vestments being “not essential to the Sacrament,” and “giving grave offence;” the fallacy and one-sidedness of which one argument of the Commissioners, I trust, I have already shewn in both its parts. After some

words further on the doctrine symbolized, on the conduct of the clergy who use the vestments, and on the not unnatural “fears in some minds that the settlement of the English Church of two hundred years ago is about to be changed” (and truly here he has “harped our fear aright”), he goes on to express his desire for an effectual restraint. “But we must not less recognize the plain fact that there is a sad and pressing necessity now laid upon us by prevailing licence, anarchy, and I fear disloyalty, to restrain; and that now restraint *must* be applied. We must, then, solemnly ask those true hearts who may deprecate, not for themselves, but for what they may deem the interests of the Church, any authoritative application of restraint, to suspend for a time even their own innocent longings and predilections, to acknowledge with us the overwhelming nature of the necessity, and to join cordially and hopefully, not the side of recklessness, scornfulness, and self-will, but the side of recognition of rightful authority, moderation, and order.”

“Brave words, indeed, as you shall see in a summer’s day,” but as it seems to me wholly misapplied, when it is remembered that the “recklessness, scornfulness, and self-will,” attributed to the Ritualistic clergy have never, so far as I am aware, or as I think is borne out by evidence, gone further than this, that they have temperately and respectfully objected to any “manipulators” being placed above the law, and asked to be allowed in quiet to obey what they believe the law to require; where, too, to speak generally, they have found such obedience to the law to be acceptable to the mass of their people, or even demanded by them; whilst, upon the other hand, the whole violence of opposition and clamour (again to speak generally) has been exhibited by those who have not belonged to the parishes or churches where such ceremonial has been in use, but who have chosen gratuitously to interfere in order to prevent others, with whom really they had nothing at all to do, having such a Ritual, believed to be within the four corners of the law, as by them was desired, and to them was edifying.

And now we come to the proposal itself—this remedy to meet so great an evil. “Lastly, then, if there is to be this restraint, what will seem to be the safest and most effectual mode of applying it? Certainly not, as I have already said, by merely arming bishops with a little more power, and then leaving the whole question in its present unsettled state to be adjusted by individual authority and individual bias; nor yet again, as I have already

said, by the omission or authoritative repeal of a rubric that has held its place in our Prayer Book from the date of the last settlement; but *by a simple and positive enactment declaring what shall be, and be considered to be, the ministerial dress*—until further order be taken. This, of course, must be by direct legislation. We may shrink from it, but in my judgment it is now inevitable. The very appointment of the Commission seems to involve it, and the general temper of the country will demand it. There are many melancholy signs that we are fast drifting towards open violations of the public peace, and that some prompt interposition of law will not only be desirable but imperative.”

Observe here the course proposed, and the marvellous declaration concerning it, that it is “not a repeal of the rubric which has held its place in our Prayer Book from the date of the last settlement.” Yet the remedy is “a simple and positive enactment (by direct legislation) declaring what shall be, and shall be considered to be, the ministerial dress—until further order be taken.” This is the remedy; and after details as to what it would prohibit, or at least allow to be prohibited (which would include all now distinctly contended for under the rubric on ornaments), the Bishop says, “*the rubric would not be repealed, but placed in abeyance.*” This is the special point to which I desire to draw your attention! Such a plan to be adopted, such restraint to be put in force and imposed; and the rubric not to be repealed! the Prayer Book not to be altered! Imagine anyone after this “simple and positive enactment” acting upon the rubric, using the things “prescribed,” or “in use by the authority of Parliament in the second year of King Edward VI.,” and then being proceeded against under the new Act. Would he not soon learn whether the rubric were not repealed? What will lawyers say? What does common-sense say on the matter? What would those who believed the Bishop (ill-starred mortals), that the rubric was not repealed, find and feel to their cost, when his assurance had led them to believe the law of the Church remains as it is?

Take a case in illustration. Say you treated thus the Decalogue, or any part of it. Take the Sixth, Seventh, or Eighth Commandments: suppose you left them to be printed in the Prayer Book still; but by “a simple and positive enactment” set men free from obedience to them, or rather prohibited obedience to them, until further order be taken. Would they be thus repealed so far as human enactment goes, or would the Prayer Book still

remain unchanged in respect to them? Or, still better, look to the Fourth Commandment—I say better, because the others are negative, and this is positive. “Remember that thou keep holy the Sabbath Day.” Grant that it were still permitted to be printed in the Prayer Book, and recited in church; but then that there were “a simple and positive enactment” restraining men from keeping it holy; prescribing and requiring a uniformity of work, according to custom widely prevailing, reminding us that a careful observance of the Lords Day had become obsolete; that long custom to the contrary had abrogated the usage, and now it was expedient to restrain it. Would this be no alteration? Would this be no repeal of the Decalogue, or change in the Prayer Book? Oh! but the Bishop says the restraint is only “until further order be taken.” Well, what is the force of this? Whatever hope it may hold out in the future, is it any *qualification* even, for the present? Surely not. Whilst the “simple and positive enactment” lasts, the former law is repealed. Besides, how much hope does it hold out, even for the future? If the Bishop’s temper and counsel are to prevail, I must affirm *none*. For we have seen that not merely the more violent enemies of Ritual, but even the Bishop himself, whom we must assume to represent its more moderate opponents, I say he himself is *not for waiting* to give those who are certainly more nearly maintaining and obeying the law than those who clamour against them, even the chance of making good their position in the eye and mind of England. He will not do this at present, when there is at least a fair presumption that in the main the law is in their favour, but he will hold them out a dim hope of something turning up propitiously for them in the future; when he has thrown all his weight and influence into the scale against them, and when, if he can have his way, he will pass a “simple and positive enactment” to condemn them, and alter adversely their *status* in the Church! He will have them put down now with the strong hand, by legislation framed expressly and on purpose to catch them for their obedience to the existing law; but they may console themselves with the thought that “all contemplation of a future when further order might be taken concerning the questions now under consideration would not be authoritatively excluded.” Well, put the consolation at its best; make what you may of it; avoid, if you can, bitterly laughing at such a mockery of hope. But even then, turn to the state of things if such an enactment take place; “a simple and positive enactment,” forbidding such “ornaments of the Church and ministers thereof” to be used “as were in use by the

authority of Parliament in the second year of King Edward VI.;" and I ask again (for this is our real and great question) What would be the condition of the Book of Common Prayer? Would it be what it is now, or would it be changed? Would the present rule be "in abeyance"—that is, much unused, but still the law—or would it be repealed? What is the difference between the proposed remedy and repeal? It would be as if you made "a simple and positive enactment" that, "until further order," no man should be arrested for debt; no man taken up for theft or violence; no man prosecuted for treason; no man hanged for murder. You may call this, abeyance of the law in those cases, but it is a misuse of the term. A thing is *in abeyance* which for any cause happens to be *disused*, not when it is by enactment *forbidden to be used*; as a title is *in abeyance*, not when there is no heir (in which case it is *extinct*), but when the heir is unknown, or the pretensions of two or more claimants undetermined; when the heir is not *forbidden*, as the heir, to take it if he *be* the heir, but only whilst there may be doubt whether he be the heir or not. But here, it is assumed by the very act of legislation that something is known to be the law, so that you despair of getting rid of it but by altering the law; and therefore that, though it is known to be the law, and for the very reason that it is known to be the law, it is to be prohibited and excluded. Can any man in his senses be made to believe that this is not repeal?

I think, sir, I need go no further as to proving that all these schemes, and this last just as much as the rest (all except the letting the courts of law settle what is the law, and then abiding by it), agree fully in this one point that they tamper with and alter our Book of Common Prayer.

And all this, over and above the reason and common-sense of the matter, tells us what the next Report of the Ritual Commission will be, unless the Commissioners be duly impressed with the danger of the course which they are pursuing, and the enormous responsibility of trying to carry it out.

And this brings me to a further practical point, which it is very fitting that I should lay before you. I mean the resistance proposed to all alteration in the Prayer Book by means of the public meeting so lately held in London; and the action to be taken in connection with the resolutions then passed as to memorializing the Royal Commissioners upon the subject.

There appears to be a curious piece of evidence that the great meeting in St. James's Hall has even already not been wholly unproductive of results. That meeting was held on Tuesday, the 19th of November. The *Times* was singularly quiescent in relation to it for nearly a week: but yesterday, Nov. 26, in an article upon Lord Portman's questions in the House of Lords touching the Bishop of Salisbury's Charge—though not dealing directly with the meeting—it yet introduces the following apposite remarks:

“It is alike extremely difficult and extremely dangerous to alter our existing formularies, but it would be perfectly possible, and that, as the Bishop of London said, without any very sweeping alterations, to simplify the course of procedure in our Ecclesiastical Courts. It seems to be generally felt that all classes of the clergy should be more amenable to the public than they have been; and it will certainly be better, as well as more practicable, to attempt in the first place to effect this result, rather by an improvement in the administration of the law than in the law itself.” ^[36] Is it straining matters too much to think that we have in this no mean tribute to the justice of the objects and views of the meeting at St. James's Hall?

And here it may not be amiss to say one word upon the principle of a Memorial to such a body as the Royal Commission. I believe there are some who think it improper to memorialize the Commissioners, as if it were like petitioning a judge to convict or acquit a prisoner placed upon his trial before him. Of course, if the cases were parallel, it would be most improper and indecent. But a moment's reflection will shew the difference. The Commission is not a court of justice at all. It has no judicial functions at all. There is no more objection to memorializing it than there is to petitioning Parliament. It is a body of men appointed to collect evidence, and afterwards to give an opinion as to what is expedient. It is then in the very nature of things, of high moment and importance that these Commissioners should know and understand what large masses of earnest Churchmen are thinking and feeling, whilst they are finding their way to their recommendations. It is a duty upon us to let them know what these feelings are, and what consequences are likely to result to the Church, when we see their tendency, nay, *more than tendency*, to lead an assault upon the Prayer Book. It is not only not improper, but it is a part of high and holy duty, which we owe to ourselves, to our Book of Common Prayer, to our faith, to the Church of England, to Christendom at large—nay, to God, our

Maker, Redeemer, and Sanctifier, to say openly and plainly, solemnly and earnestly, “We will have no tampering with our faith; we will have no altering our Prayer Book; we will have no legislation in this matter of Ritual;” and this all the more; all the more deeply felt, the more strongly urged, *became* we see that this is a wholly one-sided movement. We hear of no restraint or restriction, no new Canons or new enactments, when men fall short of the requirements of the Church and the Church’s law; when churches are closed from Sunday to Sunday; when Christ’s people are starved and stinted of their spiritual food and sustenance by few and far-distant communions; when Services and Lessons are altered, and Services garbled and curtailed at the will of this or that priest. Nay, we hear of no “simple and positive enactments,” even when men within the Church’s pale deny the inspiration of the Holy Scriptures; impute absolute ignorance to Christ our Lord, the ever-blessed Son of God; as, that He did not know as much about the authorship of the Pentateuch, or the date of certain of the Psalms, or other facts concerning the Holy Scriptures, as modern doctors could tell Him; none, when we hear denied the possibility of miracles; none, when we find explained away and rejected the duration without end of Hell; none, when it is maintained that we ought not to pray to the Son of God. I say that upon these subjects we hear of no Royal commissions, no Bishop’s charges recommending new enactments; no impending legislation to place such teaching under the disability of “*abeyance*” even “until further order be taken;” but here, where the law of the Church as to ceremonies and vestments (things no doubt important, because no doubt representing doctrine and connected with it, but certainly not more important than those other subjects to which I have alluded), but here, where these ceremonies and vestments, are the objects of ignorant clamour and brutal violence, the Prayer Book is to be altered, and new law is to be made, actually to put a penalty on those who have been guilty only of the crime of obeying it as it is.

And here I must say a word as to such alteration of the law, if made, being what one of the resolutions passed at St. James’s Hall termed it, *ex post facto* legislation. A good deal has been said upon this topic, and we are told that if you call such legislation *ex post facto*, then all legislation is such, when it forbids for the future what has been permitted in the past; and we are reminded that the true sense of *ex post facto* legislation is when a

penalty is placed, by a new law, upon acts done before the law was altered. Now first let me remark that, even without coming exactly up to the definition, you yet draw very near to the substance of *ex post facto* legislation if you make a one-sided change to catch only one side or one party whom you make offenders under the new law, and when it is a law framed expressly and on purpose to catch the men on one side and let the others go free. Whether this be technically *ex post facto* or not, it comes exactly to that which, in a passage already quoted from the Bishop of Gloucester and Bristol's Charge, is described by him as likely to cause "rankling bitterness, from the thus greatly increased conviction that the law is really in favour of those to be restrained; and being so, is overridden by an *unjust Act of Parliament*." But, secondly, there is another way in which such an enactment would come very near indeed to *ex post facto* legislation—I mean where it disturbs a great settlement of many years' standing, which has induced men to enter into numerous and weighty engagements, from which you cannot free them if you would, when you change their *status* in relation to their obligations. To take an illustration. The country has entered into such a kind of contract with the fundholder. Millions are embarked in the Funds upon the faith of a great settlement the principles of which shall never be departed from; and to depart from which would be *ex post facto* legislation, practically putting a penalty upon those who had come under voluntary obligations upon the strength of those principles and that settlement. But it may be said, nevertheless, the country does sometimes vary the contracts and alter the rate of interest towards its creditors. Yes! but what would be thought of the minister who proposed to do this, without offering, as the alternative, to pay the lender off in full; to replace him in the position in which he stood originally? And if, without offering this, he proposed to alter his *status*, who would not feel there was an unjust *ex post facto* alteration of the law? Now, upon such a great, just, and deliberate settlement, have men entered into relations with the established Church of this country. And here the State *cannot* set them free, or replace them in the position in which they stood before they accepted the cure of souls within her pale. The Legislature *cannot* give them the alternative offer: and therefore, again, such a change as alters the Catholic standing of the Church of England must come very near indeed to being *ex post facto* legislation. But yet further, thirdly, there is another consideration which brings this case exactly within the strictest definition of *ex post facto*

legislation. I mean the affixing a penalty by new enactment upon acts done before the law was changed. Observe, all penalty is not material; not restricted to fine or suspension. There is the penalty of stigma and imputed dishonesty, as real and as hard to bear in many cases as other punishment. Now, it needs no great foresight or wisdom to perceive that if the law of Ritual shall be altered in the sense and mode proposed, this very thing will be used as a stigma and brand of disloyalty to the Church of England against those men who have been High Ritualists. It is true it might be, and in my judgment, ought to be, read the other way. It ought to be taken as a proof that the existing law being in their favour, those who could not endure the law got it altered. But, from the whole tone and temper of the objectors, it is clear this would not be their line. They tell us even now, over and over again, with the outstretched throat of clamour, and with the utmost violence of passion, that all such are false to the principles of the Reformation; are dishonest and disloyal to their Church; are not to be endured in a Protestant Establishment. It is clear, then, that they would proclaim the new legislation to be merely *declaratory* of the existing law; not admit that it *changed* it; and so the enactment would be used as a fresh ground of obloquy and reproach against those whom their opponents could not convict of any crime, but whom they would thus be allowed, nevertheless to condemn. Such a stigma, such a penalty placed by legislation upon acts done before the change of law, and upon the persons who had done them, would bring such change of law under the definition, in the strictest sense, of *ex post facto* legislation.

But now to return. Let me explain the position which I am throughout maintaining. I have not been speaking as the advocate of high Ritual. I do not understand the aim of the great meeting held last week in St. James's Hall to be this advocacy; nor do I so understand the Memorial to be laid before the Commissioners. It is not to defend high Ritual in itself, however incidentally Ritual may be affected; but it is to defend the Prayer Book. It is to preserve our present *status*. It is to allow no door to be shut upon the Catholic side, whilst all are left open on the Latitudinarian. It is to preserve an outwork which defends doctrine—dearer than life to many among us. It is to keep all which God's providence has given us in our Reformation and subsequent Revisions. It is to preserve our character and place in the face of Christendom; it is to shew our loving memory and gratitude for all which

our blessed Lord has done for us, and is still doing at the right hand of God, that we will not consent to have this our heritage mutilated or taken from us. And surely in this all Churchmen who believe the ancient Catholic Faith are interested with us, Ritualist or non-Ritualist. I am not myself a Ritualist in the sense of using any of the higher forms of ritual, ceremonial, or vesture. I believe indeed, and who that believes the doctrine so represented, but *must* believe, that England would be in a higher, holier, and happier state, if, not neglecting one other point of holiness, humility, repentance, or faith, yet, I say, if all among us longed for and delighted in the higher and fuller expression of the faith. But I do not think this fuller expression is to be forced on those who are unprepared for it. I believe in many cases this would hinder rather than help the doctrine. And I have been accustomed to consider that the *abeyance* of much of the usage (I take the term in its true sense of a practical discontinuance, not of a legal forbidding, which is the repeal or extinction of a thing), that such abeyance may well justify us in not harshly shocking prejudices or wounding feelings; and, therefore, certainly it is not as a mere movement in support of the higher forms of ritual that I am addressing you:—but I ask this;—What is the object of our opponents? Assuredly not merely to put down vestments, or put out candles, or extinguish incense; but to drive out of the Church of England the whole doctrine which those things represent; to expel every one, whether Ritualist or not, who holds and teaches it; to run riot in the destruction of every vestige of faith in the Real Presence, in the Priesthood, the Altar, and the Sacrifice. The papers of the Church Association (*passim*), the writings of the whole anti-Ritualistic world, who are also the anti-Sacerdotal party, from the well-known noisy and ignorant correspondents of the *Times* to the miserable man who so lately has shocked every feeling of decency in his, at first, most impertinent, and, at last, most blasphemous, correspondence with and concerning the late revered Bishop of Lichfield; all such proclaim this as their aim and end, with open mouth and outstretched throat. If you ask for an example, take the following brief passage brought before the English Church Union at its anniversary meeting in June last, by Mr. Charles Wood in his excellent speech on that occasion. He said—“In an article that appeared in one of the periodicals, which is most conspicuous in its attacks upon Ritual—I mean *Frazer’s Magazine*—I found, in one of its last year’s numbers, this, ‘There is no use in taking half-measures. As long as the Ordination Service remains as it is,

Ritualism will always be cropping up. The real remedy is to alter a single rubric. Forbid the imposition of hands, and then we shall get rid of Ritualism once and for all.’” ^[41] Surely such language as this, and it is the very staple of the fierce opponents of Ritual, should open the eyes of all Churchmen as to what it is, (that it is really vital doctrine,) for which we have to contend. I say, then, that the present contest and crisis touches every Churchman, Ritualist or not, who believes the higher doctrine. Nay, it touches every one, Ritualist or not, who does not desire to see the comprehensive character of the Church of England narrowed, in a party sense, and for a party purpose. It touches all who agree with what the Dean of Norwich lately said at Wolverhampton, that it would be an immense and incalculable evil if one great school of thought in the Church of England were to drive the other out of her (though, by the way, I think he did not note what surely in justice he should have noted, that it is only on the one side that this desire for expulsion has been expressed). It touches in short all who desire to let law and reason have fair play against clamour and violence; all who will stand *by* and *for* the Prayer Book as it is. Let us all join hand and heart in averting the present danger, and in defending our heritage. Oh! if I may say it, believe me, friends, there has been no such crisis as now is in our Church, in our day at least.

Bear with me a few moments longer whilst I confirm what I have said by a better warrant than any word of mine. In the year 1865, he whose name is perhaps more revered among us than any name of at least this century—he whose memory is “as galbanum, and onyx, and sweet storax, and as the fume of frankincense in the tabernacle,” the “sweet singer” of our Israel—wrote and published some thoughts upon Ritual, and the doctrine represented by it, and the growing opposition to it. In almost, as it seems, a spirit of prophecy, speaking of the very matter now in question—a proposal for legislation, touching thereby the integrity of the Prayer Book—he said:—“It professes, indeed, to meddle with one rubric only, but it involves the same prerogative over all, and that which it specifies is one of the most important and comprehensive, bearing directly on one vital doctrine, and through that, as theologians know, upon the whole Creed of the Church. And what is more, those who promote the movement openly avow that their object is thus comprehensive . . . They frankly own their purpose to be, not simple reformation of that one rubric, but the discomfiture at all points of a

rival section in the Church.” He adds:—“It is well perhaps that they have declared themselves so openly. It may put many on their guard who might otherwise have supported them at least passively, as not liking the special usages complained of, or as fearful of their being revived where they would cause disturbance. Whoever after this their plain speaking shall join in their movement must be aware that he is committing himself to a one-sided policy, which ultimately displacing those who are called Tractarians or the like, will quite overthrow the sort of equilibrium which for many years has providentially subsisted among us.” [\[43a\]](#)

So clearly did John Keble see that the attempt to alter that one rubric on ornaments was a matter of most vital importance to Sacramental doctrine. And if he spoke thus when the plan referred to was but in its infancy, and the danger more remote, need anyone be told what he would advise now? Truly, “he being dead yet speaketh.” Who is there that will not hear? [\[43b\]](#)

He adds this yet further, well worthy of our most heartfelt contemplation:—“And if we look beyond our own country, as surely we are bound to do, certain it is that such a decree” (*i.e.*, an Act of Parliament altering the rubric), “not only submitted to but promoted and solicited by the Convocation of the Province of Canterbury, would effectually quench, for the time at least, all the fond hopes of reunion among Christians which just now appear to be dawning on us in various quarters. For, undoubtedly of all doctrines, that of the Eucharistic Sacrifice is the one on which in the eyes both of East and West our Catholicity would appear most questionable. *A hair’s-breadth* more of wavering on that point would seem to them, I fear, an entire forfeiture of our position.” Oh, how noble and catholic an aspiration after a reunion with East and West, and how just an appreciation of what would vitally affect, adversely, the hope and prospect of it! How different from the narrow sectarianism which would boast of our isolation, and, cavilling at everything, can see only an overture to Rome in an “Eirenicon” to Christendom. O that our Convocations may hear and heed such warning words, and stand firm, whatever trial comes! Let me hope, let me pray, that all true Churchmen, Ritualists or not, will here throw themselves into the gap, and raise a bulwark against tampering with our Prayer Book. The outwork may be the rubric on ornaments, but, “as theologians know,” it is the Creed which is really at stake, through an altered Book of Common Prayer. We must defend the outwork to defend

the citadel. We must one and all make our voice heard against change here, either directly or indirectly, either explicitly or implicitly, either by Convocation or by Parliament, or by both together. Better our Convocations were silenced again for a hundred years, if any minister of the Crown would venture to silence them (which I shall not believe until I see it), than that they should lend themselves to alter our Prayer Book and impair its catholicity. But to strengthen the hands of all who have power or influence herein, we must be prompt, energetic, valiant, wise. Believe me it is not a question of shapes or colours. It is not a question of supporting the Ritualists, though incidentally their position may be supported. But it is the question of not losing one jot or tittle of what God's providence has given us. And to preserve what we have is essential to our work at home and to our place in Christendom. We cannot afford to give away our birthright. We cannot afford to be diverted by any *bye* enquiries or cavils. The real question is the preservation intact in its integrity of our Book of Common Prayer, and with it of Catholic doctrine and truth among us.

I have used the term—our place in Christendom. Let me add a word or two more upon this. English Churchmen, I fear, are too apt to overlook that we are but a small part of the Church Universal, and that our aspirations should ever be that “the unhappy divisions” which now prevail in it may be healed, and the Church again be *one* (according to our Blessed Lord's Prayer), that indeed “the world may believe that God hath sent Him.”

Now, with this feeling and this hope in our hearts, we must never allow ourselves to forget that there is such a thing as an Œcumenical Council of Christendom, and whatever the difficulties may be in the way of its assembling, I believe to it all true hearts should turn. Certainly, for myself, I can say that this, as the great remedy for all our troubles and distractions, and “not for ours only,” but for those of Christendom at large, has been constantly present to my mind for many years. That God in His mercy, and in His own good time, would grant us a true General Council to ease and compose our differences, and to restore the unity of Christendom,—and, if it come, grant us all the due mind of submission to it,—has been for nearly or quite a quarter of a century, a portion of my daily prayer; and I think there is no ground to decry the petition as either fanciful or wrong. At least we have the warrant of some of great name among us who have not thought so. “That I might live to see the reunion of Christendom,” says Archbishop

Bramhall, “is a thing for which I shall always bow the knees of my heart to the Father of our Lord Jesus Christ . . . Howsoever it be,” he adds, “I submit myself and my poor endeavours first to the judgment of the Catholic Œcumenical essential Church, which, if some of late days have endeavoured to hiss out of the schools, as a fancy, I cannot help it. From the beginning it was not so. . . . Likewise I submit myself to the representative Church—that is, a free General Council, or so general as can be procured; and until then to the Church of England, wherein I was baptized, or to a National English Synod.” [\[45\]](#)

It may be supposed, indeed, that a general or Œcumenical Council is at present hopeless, and therefore that all mention or thought of an appeal to it is out of place; but I do not think this, for two reasons—first, that there are certain points of doctrine which have been so definitely ruled by General Councils and consent of Christendom that we know upon them there could be no diverse judgment; and, secondly, that I see no cause to despair of another such Council in God’s good time being called together. Even in the meanwhile the thought of, and habitual mental reference to, such a Council is neither impertinent nor unpractical; for the remembrance and sense of its authority, and the even mental submission of the will to its rule, has the strongest tendency to keep a man wholly catholic in heart and act. An English Churchman should *live* in the thought and in the hope of the voice of Christendom being again uttered with no uncertain sound as to matters of perplexity and doubt. Even “though it tarry, he will wait for it,” and in the meanwhile the thought of it will bear its fruit. Thus, whatever he does, and is obliged to do, without the actual presence of such a guide, will be done, not on the mere impulse of his own will, or the bent of his own mind, but always in relation to what Christendom has definitely ruled, and in implicit submission to what she will again say when she may meet once more in a free and General Council. Anyone so living, trusting, believing, acting, will never be a schismatic, and cannot be a heretic. But I do believe we shall never, till we get to look out of ourselves to Christendom at large; never, till we remember our due place in it; never, till we are ready to accept its decrees (when God sees Christendom fit to give them); never till then, shall we be in that right mind and heart which is waiting duly for the Bridegroom’s call.

I am quite prepared to have such remarks called visionary and unreal, and all dependance upon, nay, all reference to, the Universal Church, unpractical and absurd. But none of these things move me, and I am (though, I trust, no fanatic) yet hopeful of the help of God for those who will try to help themselves. As I have said, I cannot think the expectation of a General Council is chimerical. I cannot believe, if it come, it will be useless. We have no right, of course, to expect any supernatural interposition or handwriting visibly on the wall to direct us in our difficulties. But I have faith enough in miracles, if that be one, to believe that God may grant us the miracle of Christendom again in Council, and make it the means to heal all our distempers and bind up all our wounds. Of this faith and this hope no man shall deprive me by the mere calculations of human policy, or by the perverse promptings of an uncatholic despair. But let us all watch and pray, and work with the help of God, to preserve our true catholic heritage and place, lest, when it meet, it should meet to condemn us. But this we will never believe can come upon us until we see, which God forbid, our Church faithless to God and to herself in the face of Christendom.

Our immediate work, our present duty, is indeed on a narrower scale and in a smaller sphere, yet not without an eye to these further consequences. It is to maintain our catholic *status*; and in order to this, to make it plain to all, friends and foes alike, that we will stand by our Prayer Book, and never consent to alter in an uncatholic direction one jot or tittle of that which it contains.

FINIS.

Printed by the Church Press Company, 13, Burleigh-street, Strand.

FOOTNOTES.

[6] *Charge*, p. 75.

[7] *Report*, p. vii.

[13] See *History of Savoy Conference*: Collier, Vol. ii. pp. 876–886.

[15] *Report*, p. vii.

[16] If the Commissioners should justify their thus reporting on things not essential, in the face of the very letter of their instructions, by saying that they understand the term essential to be *relative*; essential, not necessarily to the *Being*, but to the *well-being* of the Church, and that the repression of the vestments is, in their mind, thus relatively essential; it occurs immediately to ask, why, if they were thus so quickwitted to perceive this sense of relative essentiality on their own side, were they so obtuse in seeing that the same construction should equally be allowed to the witnesses examined, in their use of the word essential on the other side?

Or, further, if they should plead that although the things themselves were *unessential*, yet the *liberty* to deal with them was *essential*, (and in their mind essential on the side of repression,) and that thus their recommendation to restrain ceremonial is brought within the terms of their Commission; it must again be asked, why did they not award the same latitude of construction to the witnesses upon whose evidence they ground their sole recommendation; when it would be seen immediately that their inference and conclusion are wholly illogical and absurd. For their reasoning fully stated would then run thus:—“We find the vestments are by none regarded as essential to the *Being*, though we are aware that by many they are considered essential to the *well-being* of the Church; and *therefore* we come to the opinion that all variations in respect of vesture be restrained and abolished.” Or, (on the other view,) “We find the vestments are by

none regarded as in themselves essential, though by many the liberty to use them is regarded as essential, and *therefore* we recommend that they be repressed and disallowed.” What must be said of a Report the compilers of which can only present even the semblance of avoiding direct collision with the terms of their appointment by such treatment of the word *essential*; who claim this latitude of interpretation on their own side, whilst they wholly overlook or deny the same to the witnesses whose evidence they desire to make responsible for their illogical conclusion? Truly if the Commissioners have taken such interpretations for themselves, and in the same breath deny them to the witnesses whom they quote, what words can be too strong to describe their blindness if they did not see this incongruity, or their unfairness if they did; whilst, if to escape such a dilemma, they repudiate both the above pleas, what defence can they make against the just rebuke of the trenchant Archdeacon of Taunton, when he said at Wolverhampton that “they had been appointed to report only upon things *essential*, and had reported only upon things *non-essential*”?

[19] For this and the following quotations see *Charge of Bp. of Gloucester and Bristol*, p. 57; also pp. 66–77.

[26] *Report*, p. 131.

[27a] Opinions will no doubt be different as to the accuracy of this account of what is Romanism. The passage is not cited to bind anyone’s judgment in this respect, but rather for its negative weighty shewing at least what in the judgment of such a man (one as it is evident with *no* bearings which *anyone* can call Popish) is *not* Romanism.

[27b] Appendix to Report on Ritual, pp. 130–131.

[28a] Appendix, p. 130.

[28b] See p. 24.

[36] *Times*, Nov. 26, 1867.

[41] Speech of Hon. C. L. Wood, *English Church Union Circular*, July, 1867, p. 241.

[43a] Letter on “Ritual,” by Rev. John Keble, 1865.

[43b] The following, very recently published by the Dean of Norwich, is worthy of insertion as a note to Mr. Keble's remarks:—"From the alteration of the Lectionary to that of the rubrics there is but one step; and from an alteration of the rubrics we shall pass by an easy transition to the rearrangement of prayers—the cancelling (or bracketing) of some and the insertion of others. Questions of this kind being once opened, the Prayer Book would become an arena of fierce and furious controversy, and the reconstruction of it in what would be called an improved form would be the dismemberment of the Church of England"—Preface to *Two Sermons: A Word for the Old Lectionary*. By E. M. Goulburn, D.D., Dean of Norwich. 1867.

[45] Bramhall's Works, p. 141.

*** END OF THE PROJECT GUTENBERG EBOOK REMARKS UPON
THE FIRST REPORT OF THE ROYAL COMMISSION ON RITUAL IN
CONNECTION WITH THE INTEGRITY OF THE BOOK OF COMMON
PRAYER ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.